

Court No. - 40

Case :- WRIT - C No. - 20483 of 2018

Petitioner :- Mithilesh Kumar Tiwari

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rajiv Dwivedi

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner.

The petitioner has come up for quashing of the recovery citation dated 24.04.2017 for a sum of Rs.44,189/- contending that the charges for consumption are being realized erroneously even for the period during which there was a disconnection by the respondents.

Having considered the submissions raised and having heard Sri Krishna Agarwal, learned counsel for the respondent nos.2 and 3 and the learned Standing Counsel for the respondent nos.1, 4 and 5 we dispose of this writ petition with liberty to the petitioner to approach the respondent no.3 along with a certified copy of this order who shall treat the same as a billing dispute and proceed to decide the same in terms of under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within three weeks of the date of presentation of a certified copy of the order. The recovery proceedings shall abide by the aforesaid order to be passed by the Executive Engineer.

Order Date :- 30.5.2018

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